

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.1693 of 2010
(Muhammad Farooq etc.VersusThe State)

Murder Reference No.440 of 2010
(The State versus Muhammad Farooq (Farooq Ahmad)

Criminal Appeal No.2213 of 2010
(Imtiaz Ahmad versus Allah Bukhsh etc.)

Criminal Revision No.1134 of 2010
(Imtiaz Ahmad versus The State etc.)

and

Criminal Appeal No.1750 of 2010
(Imtiaz Ahmad versus The State etc.)

JUDGMENT

Date of Hearing	03.04.2015.
Appellant(s) By	M/s Azam Nazeer Tarar and Muhammad Naeem Akhtar Garwa, Advocates
State By	Ch. Muhammad Mustafa, Deputy Prosecutor General
Complainant By	Mr. Sarfraz Khan Gondal, Advocate for the complainant/ appellant in Crl. Appeal No.2213 of 2010 & Crl. Appeal No.1750 of 2010 and petitioner in Crl. Revision No.1134 of 2010

Syed Shahbaz Ali Rizvi, J: - This judgment shall dispose of Criminal Appeal No.1693 of 2010 titled as Muhammad Farooq etc. versus The State filed by Muhammad Farooq, Muhammad Anwar and Muhammad Mohsin alias Pervaiz (appellants) against their convictions and sentences, Criminal Appeal No.2213 of 2010 titled as Imtiaz Ahmad versus Allah Bakhsh etc. filed by Imtiaz Ahmad (complainant) against the acquittal of Allah Bakhsh, Muhammad Nawaz, Imtiaz Ahmad and Ahmad Khan, respondents,

Criminal Revision No.1134 of 2010 titled as **Imtiaz Ahmad versus The State etc.** for enhancement of sentence of Muhammad Mohsin alias Pervaiz and Muhammad Anwar, Murder Reference No.440 of 2010 titled as **The State versus Muhammad Farooq (Farooq Ahmad)** transmitted by the learned trial court for confirmation or otherwise of the sentence of death awarded to Farooq Ahmad (convict) and Criminal Appeal No.1750 of 2010 titled as **Imtiaz Ahmad versus The State etc.** filed by Imtiaz Ahmad, in cross version recorded on the statement of Muhammad Mohsin alias Pervaiz, against his conviction and sentence, as all these matters have originated from the same judgment dated 01.07.2010 passed by the learned Addl. Sessions Judge, Mandi Bahauddin, in case FIR No.206 dated 04.06.2008, registered under Sections 337-F(iv)/337-F(i)/ 337-L(ii)/147/149 P.P.C. (Sections 302, 337-F(v) and 337-A(ii) PPC were added subsequently), at Police Station Kuthiala Sheikhan, District Mandi Bahauddin whereby, Muhammad Farooq (Farooq Ahmad), Muhammad Anwar and Muhammad Mohsin alias Pervaiz (appellants in Crl. Appeal No.1693 of 2010) were convicted and sentenced as under:-

Muhammad Farooq (Farooq Ahmad):

He was convicted under Section 302 (b) PPC for the murder of Nadir Khan (deceased) and sentenced to death. He was also ordered to pay Rs.200,000/- as compensation to the legal heirs of the deceased as envisaged under Section 544-A of the Code of Criminal Procedure, 1898 and in default thereof, to further undergo imprisonment for six months.

Muhammad Mohsin alias Pervaiz:

He was convicted under Section 337-A(ii) PPC and sentenced to two years imprisonment with the direction to pay Arsh equal to 5 per cent of Diyat.

Muhammad Anwar:

He was convicted under Section 337-L(ii), PPC and sentenced to two years imprisonment and to pay Rs.10,000/- as Daman.

It is pertinent to mention here that Muhammad Nawaz, Allah Bakhsh, Ahmad Khan and Imtiaz Ahmad were acquitted by the learned trial court through the same judgment.

2. The learned trial court, through the same judgment dated 01.07.2010 also convicted Imtiaz son of Nadir Khan in cross version under Section 337-A(ii), PPC and sentenced him for two years with the direction to pay Arsh, five per cent of Diyat whereas, Zafar Iqbal, Aslam and Manzoor, accused of cross version were acquitted.

3. Brief facts of the case, as unveiled by Imtiaz Ahmad complainant (PW-9) in his application (Exh-PJ) which culminated into registration of FIR (Exh-PJ/1) are that on 04.06.2008, at about 9:00 a.m, he (complainant) along with his father Nadir Khan (deceased) went out to graze their cattle and as soon as they reached bank of the canal at a distance of ten acres from their Dera, the accused persons who were sitting ambushed, emerged there. Ahmad Khan raised a lalkara that Imtiaz Ahmad and Nadir Khan be done to death. Pervaiz inflicted a hatched blow from blunt side on the backside of his head, Anwar inflicted a sota blow on his left calf. Meanwhile, Farooq inflicted a hatchet blow from blunt side on the left lower leg of his father, Nawaz inflicted a sota blow which landed on the back of his father. Allah Bakhsh inflicted a sota blow on his right calf. Ahmad Khan inflicted a sota blow on the right knee of his father. He and his father fell down on the ground. Then, Imtiaz Ahmad, accused inflicted a sota blow which landed on his right arm. All the accused resorted to give beating to the complainant and his father. They raised hue and cry, upon which, Muhammad Aslam (given up PW) and Aqsad Naveed (PW-10), while witnessing the occurrence, came to the spot who rescued them from the accused. The accused persons while giving them threats to commit murder, went away from the spot.

Motive behind the occurrence, as disclosed by Imtiaz Ahmad, complainant in the FIR (Exh-PJ/1), was that few days ago, an altercation took place between him and Pervaiz Ahmad, accused and abuses were exchanged and due to this grudge, the accused persons have committed this occurrence.

4. Mohsin Khan alias Pervaiz also filed an application (Exh-PD in CrI. Appeal No.1750 of 2010) for registration of cross version wherein, he maintained that he is resident of Mauza Pandowal Bala and cultivator. On 04.06.2008 at about 10.00 a.m, he along with his brother Muhammad Nawaz was present at his Dera when accused persons armed with firearms came there. Manzoor Ahmad who was armed with .30 bore pistol aimed his pistol at him and said that they will teach him a lesson for abusing. Thereafter, Imtiaz Ahmad inflicted a hatchet blow from blunt side which landed on his forehead. Nadir inflicted a sota blow which landed on the wrist of his right hand due to which he fell down. Thereafter, Zafar Iqbal inflicted a sota blow which landed on the right side of head of his brother Muhammad Nawaz. Muhammad Aslam inflicted a sota blow which landed on the top of head of his brother due to which, his brother Muhammad Nawaz fell down being seriously injured. After that all the accused gave beatings with their Dandas and Sotas to them while they had fallen on the ground. On their hue and cry, Bashir Ahmad and Riaz Ahmad came and witnessed the occurrence and saved their lives. The accused persons while giving filthy abuses and threats to commit murder went towards their Dera.

5. Muhammad Farooq and Muhammad Mohsin alias Pervaiz (appellants) were arrested in this case on 28.06.2008 by Basharat Ahmad, S.I./Investigation Officer (PW-12). On 02.07.2008, Muhammad Farooq (appellant), while in police custody, after making disclosure, got recovered hatchet (P-4) which was taken into possession vide recovery memo Exh-PH. On the same day, Mohsin

alias Pervaiz (appellant), while in police custody, after making disclosure, got recovered hatchet (P-3) which was secured vide recovery memo Exh-PG. Muhammad Anwar (appellant) was arrested on 07.07.2008 who, on 18.07.2008, while in police custody, after making disclosure, got recovered *Danda* (P-5) which was taken into possession vide recovery memo Exh-PK.

Imtiaz Ahmad, accused of cross version was arrested on 29.07.2008 who, on 02.08.2008, while in police custody, after making disclosure got recovered *Danda* (P-1) which was taken into possession vide recovery memo Exh-PC, in CrI. Appeal No.1750 of 2010.

6. After investigation in the challan case and the cross version, reports under Section 173 of the Code of Criminal Procedure, 1898 were submitted in the learned trial court. The learned trial court after observing all the pre-trial codal formalities, indicted the accused persons of challan case and cross version case separately to which they pleaded not guilty and claimed to be tried. The learned trial court recorded evidence in both the cases separately but decided the same through a consolidated judgment.

7. It is pertinent to mention here that on 07.11.2014 after hearing the arguments of both the sides, judgment in these matters was verbally announced in the open Court, but at the time of dictating the judgment and detail scrutiny of the record, this Court noticed that there were material legal points requiring more consideration, therefore, the verbal order announced in the open Court was recalled and the office was directed to fix the matters for rehearing.

8. Today, at the very outset, it has been pointed out by both the sides that in this case two separate trials were conducted regarding the same occurrence, one in the F.I.R and the other in the cross-version, wherein evidence was recorded separately as both the cases were carrying two different sets of accused as well as witnesses, but

the learned trial court at the time of final decision of the case instead of writing two separate judgments opted to write single consolidated judgment in both the cases that has seriously prejudiced the case of the parties because of that reason both the sides concur that under the law the learned trial court should have written two separate judgments to avoid any inference of the evidence recorded in two separate trials, therefore, the matter may be remanded back to the learned trial court with the direction to write two independent judgments.

9. Learned Law Officer is also of the view that the judgment passed by the learned trial court is not sustainable in the eye of law and he also requests for remand of this case back to the learned trial court for re-writing of two separate judgments.

10. Heard. Record perused.

11. The similar question was answered in the case of Muhammad Yasin v. The State (PLD 2011 Lahore 583), wherein it has been held as under:-

“In the present case there were two separate trials in which two sets of different accused were separately charge-sheeted and evidence of different sets of witnesses had been recorded. Hence there must have been two separate judgments. The contention of the learned Law Officer that in the complaint case there was short order which could be considered as separate judgment is unfounded and fallacious one. As noted above a judgment is a judicial verdict deciding a case finally which should contain points for determination, discussion thereon and the reasons for decision and should specify the offence and section of law under which accused was convicted and punished. It is a conclusion which the Court makes of the trial initiated with cognizance of the offence followed by charge and the consequent judicial proceedings against an offender. It would not be out of place to mention at this juncture that cognizance is always taken of an offence and not of an occurrence. In one occurrence there may be more than one offences committed at one time (like the present case) and the Court should take cognizance of every offence and not only of the occurrence. Once cognizance is taken of the offence, the Court is obliged to decide the case by full-fledged trial or by exercising powers provided by the Code. Therefore, presumption that since the occurrence was same or that since the offence had been committed

in the course of same transaction, as such there could have been a consolidated judgment is a wrong approach which is not permissible.”

12. In view of common stance taken by all concerned and the case law referred above, the impugned judgment dated 01.07.2010 passed by the learned Addl. Sessions Judge, Mandi Bahauddin is set aside and the matter is remanded back to the learned trial court with the direction to write two separate judgments within a period of **45 days** of the receipt of this judgment after issuance of notice to all concerned and after giving opportunity of hearing to both the sides.

13. Appellants No.2 and 3 in Criminal Appeal No.1693 of 2010 namely Muhammad Anwar and Muhammad Mohsin *alias* Pervaiz and appellant in Criminal Appeal No.1750 of 2010 namely Imtiaz Ahmad were granted bail by this Court on 02.08.2010 and 04.08.2010, respectively, by suspending their sentences; they shall remain on bail till the final decision of this case by the learned trial court subject to their furnishing fresh bail bonds in the sum of Rs.100,000/- (Rupees one hundred thousand only) each with one surety each in the like amount to the satisfaction of the learned trial court.

14. The case is sent to the learned Sessions Judge, Mandi Bahauddin, who may decide both the matters himself or may entrust the same to any other court of competent jurisdiction. The accused from both the sides are directed to appear before the learned Sessions Judge, Mandi Bahauddin. Office is directed to transmit the relevant record to the learned Sessions Judge, Mandi Bahauddin forthwith. All these matters i.e. **Criminal Appeal No.1693 of 2010**, **Criminal Appeal No.2213 of 2010**, **Criminal Revision No.1134 of 2010** and **Criminal Appeal No.1750 of 2010** are **disposed of** accordingly.

15. **Murder Reference No.440 of 2010** is answered in the **NEGATIVE** and the sentence of death of convict Muhammad Farooq (Farooq Ahmad) is **NOT CONFIRMED**.

(Muhammad Anwaarul Haq) (Syed Shahbaz Ali Rizvi)
Judge Judge

APPROVED FOR REPORTING:

Judge Judge

‘Javaid’